

The Maternity Benefit (Mines And Circus) Rules, 1963

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Union of India - Act

The Maternity Benefit (Mines And Circus) Rules, 1963

UNION OF INDIA

India

The Maternity Benefit (Mines And Circus) Rules, 1963

Rule THE-MATERNITY-BENEFIT-MINES-AND-CIRCUS-RULES-1963 of 1963

Published on 5 October 1963

Commenced on 5 October 1963

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The Maternity Benefit (Mines And Circus) Rules, 1963

Published vide Notification G.S.R. 1642, dated 5.10.1963. The words "Mines and Circus" appearing on the short title were substituted for "(Mines)" by G.S.R. 59(E), dated 27.2.1975 (w.e.f. 1.3.1975).

15.

/722

G.S.R. 1642, dated 5.10.1963. - In exercise of the powers conferred by section 28 of the Maternity Benefit Act, 1961 (53 of 1961

), the Central Government hereby makes the following rules, the same having been previously published as required by sub-section (1) of the said section, namely:-

1.

Short title and commencement.

(1)

These rules may be called The Maternity Benefit [Mines and Circus]

[Substituted by G.S.R. 59(E), dated 27.2.1975 (w.e.f. 1.3.1975).]

Rules, 1963.

(2)

They shall come into force on the 1st November, 1963.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

the "Act" means the Maternity Benefit Act, 1961 (

53 of 1961

);

(aa)

["circus" means an establishment wherein persons are employed for the exhibition of equestrian, acrobatic and other performances;]

[Inserted by G.S.R. 59(E), dated 27.2.1975 (w.e.f. 1.3.1975).]

(b)

["Competent Authority" means the Chief Labour Commissioner (Central);]

[Substituted by G.S.R. 64, dated 4.2.1992 (w.e.f. 15.2.1992).]

(c)

"Form" means a form appended to these rules;

(d)

"muster-roll" means a muster-roll maintained under rule 3;

(e)

"Registered Medical Practitioner" means a medical practitioner whose name has been enrolled in a register maintained under any law for the time being in force regulating the registration of practitioners of medicine;

(f)

"section" means a section of the Act;

(g)

all other words and expressions used hereinafter but not defined herein shall have the same meaning as respectively assigned to them in the Act.

3.

Muster-roll.

(1)

The employer of [every mine or circus]

[Substituted by G.S.R. 59(E), dated 27.2.1975 (w.e.f. 1.3.1975).]

in which women are employed shall prepare and maintain a muster-roll in Form A and shall enter therein particulars of all women workers in [the mine or circus]

[Substituted by G.S.R. 59(E), dated 27.2.1975 (w.e.f. 1.3.1975).]

.

(2)

All entries in the muster-roll shall be made in ink and maintained up-to-date and it shall always be available for inspection by the Inspector during working hours.

(3)

The employer may enter in the muster-roll such other particulars as may be required for any other purpose of the Act.

4.

Proof.

(1)

The fact that a woman is pregnant or has been delivered of a child [or has undergone miscarriage or medical termination of pregnancy or tubectomy operation or is suffering from illness arising out of pregnancy, delivery, premature birth of a

child or miscarriage or medical termination of pregnancy or tubectomy operation]

[Substituted by G.S.R. 70(E), dated 31.1.1996 (w.e.f. 1.2.1996).]

shall be proved by the production of a certificate to that effect,-

(a)

from a Medical Officer of a regional hospital or a dispensary set up under the Coal Mines Welfare Organisation; or

(b)

where there is a Mines Board of Health within whose jurisdiction the mine is situated, from the Medical Officer of that Board; or

(c)

from a Registered Medical Practitioner.

The certificate shall be in Form B.

(2)

The fact that a woman has been confined may also be proved by the production of a certified extract from a birth register maintained under the provisions of any law for the time being in force or a certificate signed by a registered midwife.

(3)

The fact that a woman has undergone miscarriage may also be proved by the production of a certificate signed by a registered midwife.

(4)

The fact of death of a woman or a child may be proved by the production of a certificate to that effect in Form C from any of the authorities referred to in sub-rule (1) or by the production of a certified extract from a death register maintained under the provisions of any law for the time being in force.

(5)

The certificate from a registered midwife shall be in Form D.

5.

Payment of maternity and other benefit.

(1)

A woman employed in a mine or circus and entitled to maternity benefit shall give notice to her employer in Form E and the employer shall make payment of the maternity benefit and any other amount due under the Act to the woman concerned, or, in case of her death before receiving such maternity benefit or amount, or where the employer is liable for maternity benefit under the second proviso to sub-section (3) of section 5, to the person nominated by the woman in her notice in Form E and in case there is no such nominee to her legal representative.

(2)

In case of doubt, the maternity benefit or other amount due to a woman employed in [a mine or circus]

[Substituted by G.S.R. 59(E), dated 27.2.1975 (w.e.f. 1.3.1975).]

shall be deposited by the employer, within two months of the date of death of the woman concerned with the Competent Authority, who shall, after making necessary enquiries, pay it to the person who, in his opinion, is entitled to receive it.

(3)

Whenever the payment referred to in sub-rule (1) is made, a receipt shall be obtained by the employer in Form F from the person to whom the payment is made. In cases falling under sub-rule (2), a receipt shall be given to the employer by the Competent Authority.

(4)

The medical bonus shall be paid alongwith the second instalment of the maternity benefit.

(5)

The maternity benefit or any other amount payable under section 7 shall be paid within two months of the date of death of the woman entitled to receive such benefit or amount.

(6)

The wages payable under section 9 shall be paid to the woman entitled to receive such wages within forty-eight hours of production by her of the certificate in Form B or Form D.

(6)

[(a) The wages payable under section 9-A of the Act shall be paid to the woman entitled to receive such wages within forty-eight hours of production by her of the certificate in Form B.]

[Inserted by G.S.R. 70(E), dated 31.1.1996 (w.e.f. 1.2.1996).]

(7)

The wages payable under section 10 shall be paid to the woman entitled to receive such wages within forty-eight hours of the expiry of the period of leave referred to in that section.

6.

Break for nursing child.

- Each of the two breaks mentioned in section 11 shall be of 15 minutes' duration. An extra sufficient period, depending upon the distance to be covered, shall be allowed for the purpose of journey to and from the creche or the place where the children are left by women while on duty, provided that such extra period shall not be of less than 5 minutes and more than 15 minutes' duration. If any dispute arises regarding such extra period, the matter shall be referred to the Competent Authority for decision.

7.

Duties and powers of the Competent Authority and Inspectors.

(1)

The Competent Authority shall be responsible for the administration of these rules throughout the territories to which they extend.

(2)

Every Inspector shall discharge his duties within the area assigned to him by the Central Government and shall act under the supervision and control of the Competent Authority.

(3)

Every Inspector shall at each inspection of [a mine or circus]

[Substituted by G.S.R. 59(E), dated 27.2.1975 (w.e.f. 1.3.1975).]

see:-

(a)

whether due action has been taken on every notice given under section 6;

(b)

whether the Muster-roll prescribed under rule 3 is correctly maintained;

(c)

whether there have been any cases of discharge or dismissal or notices of discharge or dismissal in contravention of the provisions of section 12 since the last inspection;

(d)

whether the provisions of sub-section (1) of section 4, sub-sections (5) and (6) of section 6, sections 8, 9, [9-A]

[Inserted by G.S.R. 70(E), dated 31.1.1996 (w.e.f. 1.2.1996).]

, 10, 11, 13 and 19 have been complied with and whether amounts due have been paid within the prescribed time;

(e)

whether there have been any cases of deprivation of maternity benefit or medical bonus in contravention of sub-section (2) of section 12; and

(f)

how far the irregularities pointed out at previous inspections have been remedied and how far orders previously issued have been complied with.

(4)

Where an Inspector observes irregularities against the Act or these rules, he shall issue orders in writing to the employer asking the latter to rectify the irregularities within a specified period and to report compliance to the Inspector.

8.

Acts which constitute gross misconduct.

- The following acts shall constitute gross misconduct for purpose of section 12, namely:-

(a)

wilful destruction of employer's goods or property;

(b)

assaulting any superior or co-employee at the place of work;

(c)

criminal offence involving moral turpitude resulting in conviction in a Court of law;

(d)

theft, fraud, or dishonesty in connection with the employer's business or property; and

(e)

wilful non-observance of safety measures or rules on the subject or wilful interference with safety devices or with firefighting equipment.

9.

Appeal under section 12.

(1)

An appeal under clause (b) of sub-section (2) of section 12 shall be preferred to the Competent Authority in Form G.

(2)

The appeal may be made in writing and either handed over personally or sent under a registered cover to the Competent Authority.

(3)

When an appeal is received, the Competent Authority shall furnish a copy of the memorandum of appeal to the employer, call for his reply thereto and also ask him to produce documents connected with the issue of the appeal by a fixed date. The Competent Authority may ascertain further details, if necessary, from the employer as well as from the woman. On considering the facts presented to him and ascertained by him the Competent Authority shall give his decision. In case the employer fails to submit his reply or produce the required documents within the specified period, the Competent Authority may give his decision ex parte .

10.

Complaint under section 17.

(1)

A complaint under sub-section (1) of section 17 shall be made in writing in Form H or I as the case may be.

(2)

When a complaint referred to in section 17 is received by an Inspector, he shall examine the relevant records maintained by the employer in this behalf, examine any person employed in [the mine or circus]

[Substituted by G.S.R. 59(E), dated 27.2.1975 (w.e.f. 1.3.1975).]

and take down necessary statement for the purpose of the enquiry and if he is satisfied that the maternity benefit or the amount has been improperly withheld, he shall direct the employer to make the payment to the woman or to the person claiming the payment under section 7, as the case may be, immediately or within a specified period.

11.

Appeal under section 17.

(1)

An appeal against the decision of the Inspector under sub-section (2) of section 17, shall lie to the Competent Authority.

(2)

The aggrieved person shall prefer an appeal in writing to the Competent Authority in Form J and file other supporting documents.

(3)

When an appeal is received, the Competent Authority shall call from the Inspector before a fixed date, the record of the case. The Competent Authority shall, if necessary, also record the statements of the aggrieved person, and of the Inspector and seek clarification if any is required.

(4)

Taking into account the documents, the evidence produced before him and the facts presented to him or ascertained by him, the Competent Authority shall give his decision.

12.

Supply of forms.

- The employer shall supply to every woman employed by him at her request free of cost copies of Forms B, C, D, E, F, G, H and I.

13.

Non-submission of notices, appeals or complaints in the prescribed forms.

- Nothing in rules 5, 9 and 10 shall affect the right of a woman entitled to receive maternity benefit or any other amount due under the Act if she fails to submit a notice, appeal or complaint under the said rules, as the case may be, in a prescribed form:

Provided that where a notice, appeal or complaint under the said rules has been submitted by a woman entitled to receive maternity benefit or any other amount due under the Act in a form other than the prescribed form, the authority concerned may, within 15 days of the receipt of such notice, appeal or complaint require the woman to submit the notice, appeal or complaint, as the case may be, in the prescribed form.

14.

Records.

- Records kept under the provisions of the Act and these Rules shall be preserved for a period of two years from the date of their preparation.

15. Abstract.

- The abstract of the provisions of the Act and these rules required to be exhibited under section 19 shall be in Form K and shall be exhibited in such manner as the Competent Authority may require.

16.

Annual returns.

- [(1) (a) The employer of every mine or circus shall upload a unified annual return online in Form X on or before 1st day of February every year on Web Portal of the Ministry of Labour and Employment giving information as to the particulars specified in respect of the preceding year.

(b)

After appending his digital signature on the annual return referred to in clause (a), the employer shall send the annual return online to the Competent Authority and retain a copy of the annual return for records.

(c)

Every employer, on or before the 1st day of February every year, shall file annual returns referred to in clause (a) in the Form X to the Competent Authority giving information as to the particulars specified in respect of preceding year:

Provided that during inspection, the Inspector shall require the production of the accounts, books, register and other documents if the same are maintained in manual form or in electronic form, as the case may be.

(2)

If the employer of a mine or circus to which the Act applies sells, abandons or discontinues the working of the mine or circus, then, he shall, within one month of the date of such sale or abandonment or four months of the date of such discontinuance, as the case may be, submit to the Competent Authority a further return in Form X in respect of the period between the end of the preceding year and the date of the sale or abandonment or discontinuance.

Explanation. - For the purposes of this sub-rule, the expression "electronic form" shall have the same meaning as assigned to it in clause (r) of section 2 of the Information Technology Act, 2000 (

21 of 2000

).

(3)

The Central government shall, from time to time, specify the instructions in respect of filling up the annual returns referred to in clause (a) of sub-rule (1) and for other matters related thereto.]

[Substituted by Notification No. G.S.R. 435(E), dated 29.5.2015 (w.e.f. 1.3.1975).]

Form A

See Rule 3

Muster-Roll

Name of [mine or circus]

[Substituted by G.S.R. 59(E), dated 27-2-1975 (w.e.f. 1-3-1975).]

1. Serial Number.

2. Name of woman and her father's (or, if married, husband's) name.

3. Date of appointment.

4. Nature of work.

5. Dates with month and year in which she is employed, laid off and not employed.

Month

No. of days employed

No. of days laid off

No. of days not employed

Remarks

1

2

3

4

5

6. Date on which the woman gives notice under section 6.

7. Date of discharge/dismissal, if any.

8.

Date of production of proof of pregnancy under section 6.

9. Date of birth of child.

10. Date of production of proof of delivery/miscarriage/[Medical Termination of pregnancy/tubectomy operation /death.]
[Substituted by G.S.R. 70(E), dated 31st January, 1996 (w.e.f. 31-1-1996).]

11. Date of production of proof of illness referred to in section 10.

12. Date with the amount of maternity benefit paid in advance of expected delivery.

13. Date with the amount of subsequent payment of maternity benefit.

14. Date with the amount of bonus, if paid, under section 8.

15. Date with the amount of wages paid on account of leave under section 9.

15A.

[Date with the amount of wages paid on account of leave under section 9A.]

[Inserted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

16. Date with the amount of wages paid on account of leave under section 10 and period of leave granted.

17.

Name of the person nominated by the woman under section 6.

18.

If the woman dies, the date of her death, the name of the person to whom maternity benefit and/or other amount was paid, the amount thereof, and the date of payment.

19.

If the woman dies and the child survives, the name of the person to whom the amount of maternity benefit was paid on behalf of the child and the period for which it was paid.

20.

Signature of the employer of [the mine or circus]

[Substituted by G.S.R. 59(E), dated 27-02-1975 (w.e.f. 1-3-1975).]

authenticating the entries in the muster-roll.

21.

Remarks column for the use of the Inspector.

Form B

[See Rule 4(1)]

This is to certify that I examined.... wife/ daughter of a woman employee in..... (name of [mine or circus]

[Substituted by G.S.R. 59(E), dated 27-02-1975 (w.e.f. 1-3-1975).]

) on..... (date) and found/cannot discover that she is pregnant and is expected to be delivered of a child within (month and/days) from the above mentioned date/ has undergone miscarriage/[Medical termination of pregnancy or tubectomy operation]

[Inserted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

/has been delivered of a child on..... (date) or is suffering from.....(date) from illness arising out of pregnancy/delivery/ premature birth of a child or miscarriage/[Medical termination of pregnancy or tubectomy operation].

[Substituted by G.S.R. 59(E), dated 27-02-1975 (w.e.f. 1-3-1975).]

Signature, qualifications and designation of Medical Officer/Medical Practitioner

Date.....

Definitions of "child" and "miscarriage" as in the Maternity Benefit Act, 1961.-

1. "Child" includes a still-born child.

2. "Miscarriage" means expulsion of the contents of a pregnant uterus at any period prior to or during the twenty-sixth week of pregnancy but does not include any miscarriage, the causing of which is punishable under the Indian Penal Code.

Form C

[See Rule 4(4)]

This is to certify that Smt..... wife/daughter of.....employed in.....
(name of [mine or circus])

[Substituted by G.S.R. 59(E), dated 27th February, 1975 (w.e.f. 1-3-1975).]

) expired onbefore/during/after confinement. The child died on...../survives her.

Signature, qualifications and designation of Medical Officer/Medical Practitioner.

Date.....

Form D

[See Rule 4(5)]

This is to certify that I examined.....wife/daughter of....a woman employed in.....(name of [mine or circus])

[Substituted by G.S.R. 59(E), dated 27th February, 1975 (w.e.f. 1-3-1975).]

) and found that she has been delivered of a child/ has undergone miscarriage on..... (date)

Signature of registered midwife.

Date.....

Definitions of "child" and "miscarriage" as in the Maternity Benefit Act, 1961-

1. "Child" includes a still-born child.

2. "Miscarriage" means expulsion of the contents of a pregnant uterus at any period prior to or during the twenty-sixth week of pregnancy but does not include any miscarriage, the causing of which is punishable under the Indian Penal Code.

Form E

[See Rule 5(1)]

Notice Under Section 6 Of The Maternity Benefit Act, 1961

To

.....(name of [mine or circus])

[Substituted by G.S.R. 59(E), dated 27th February, 1975 (w.e.f. 1-3-1975).]

)

I (name of woman) wife/daughter of employed as at
..... (name of [mine or circus])

[Substituted by G.S.R. 59(E), dated 27th February, 1975 (w.e.f. 1-3-1975).]

), hereby give notice that I expect to be confined within six weeks next following from the date of this notice/have given birth to a child on (date) and shall be absent from work from(date). I shall not work in any establishment during the period for which I receive maternity benefit.

2. For the purpose of section 7, I hereby nominate..... (here enter name and address of the nominee) to receive maternity benefit and/or any other amount due to me under the Act in case of my death.

Signature of an Attestor in case the woman is not able to sign and affix thumb impression.

Signature or impression of woman

Date.....

Form F

[See Rule 5(3)]

Form Of Receipt Of Maternity Benefit

To

.....(name of [mine or circus])

[Substituted by G.S.R. 59(E), dated 27th February, 1975 (w.e.f. 1-3-1975).]

). I,....., the undersigned, a woman employee/the nominee of..... woman employee/legal representative of..... woman employee deceased in (name of 1 [mine or circus])

[Substituted by G.S.R. 59(E), dated 27th February, 1975 (w.e.f. 1-3-1975).]

) at..... in..... district received maternity benefit and/or other amount due under the Maternity Benefit Act, 1961, from the employer of [mine or circus] referred to above, as detailed below :-

Rs..... being the first instalment of maternity benefit paid on.....

Rs..... being the second instalment of maternity benefit after delivery paid on.....

Rs..... being the medical bonus under section 8 of the Act paid on.....

Rs..... being the wages for the leave period from..... to..... mentioned under [sections 9, 9A or 10]

[Substituted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

.
*My/Her confinement/miscarriage [Medical termination of pregnancy or tubectomy operation]

[Inserted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

took place on.....or I/she fell ill because of pregnancy, delivery, premature birth of a child or miscarriage [or medical termination of pregnancy or tubectomy operation]

[Inserted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

on..... In consequence I,..... her nominee/legal representative have received the aforesaid amounts prescribed in [sections 5, 8, 9, 9A and 10]

[Substituted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

of the Maternity Benefit Act, 1961.

Signature or thumb impression of.....

*Woman employee or her nominee or legal representative

Signature of an Attestor in case the woman is not able to sign and affixes thumb impression

Date.....

*Strike out unnecessary portion.

Form G

[See Rule 9]

To,

The Competent Authority,

.....(Address)

Sir,

I,....., the undersigned, woman employee of..... (name and full address 3[mine or circus]) have been wrongly deprived by the employer of maternity benefit or medical bonus or both (strike out unnecessary portion) for the reasons attached hereto, prefer this appeal under sub-section (2) of section 12 and request that the said employer be ordered to pay the above mentioned amount to me. A copy of the order of the employer in this behalf is enclosed.

Signature or thumb impression of the Women

Date.....

Signature of an Attestor in case the woman is not able to sign and affixes thumb impression.

Full address of the nominee/legal representative

Form H

[See Rule 10]

To,

The Inspector,

(Under The Maternity Benefit Act, 1961)

Sir,

I,..... (name of woman) employed in..... (name and full address of [mine or circus])

[Substituted by G.S.R. 59(E), dated 22-2-1975 (w.e.f.1-3-1975).]

) having fulfilled the conditions laid down in the Maternity Benefit Act, 1961 and the Rules thereunder, am entitled to Rs..... being maternity benefit and/ or Rs..... being the medical bonus and/or Rs being wages for

leave due under [section 9 or 9A]

[Substituted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

10 but the same has been improperly withheld by the employer. He may, therefore, be directed to pay the amount to me.

Signature or thumb impression of the Woman

Date.....

Signature of an Attestor in case the woman is unable to sign and affixes thumb impression.

Full address of the women.

Date.....

Form I

[See Rule 10]

To

The Inspector,

(Under The Maternity Benefit Act, 1961)

I,..... (name), a person nominated under section 6 by or a legal representative of.....(name of woman) employed in(name and full address of [mine or circus])

[Substituted by G.S.R. 59(E), dated 27th February, 1975 (w.e.f. 1-3-1975).]

) have to complain that the said woman having fulfilled the conditions laid down in the Maternity Benefit Act, 1961 and the Rules thereunder is entitled to Rs..... being maternity benefit and/or Rs..... being the medical bonus and/ or Rs..... being wages for leave due under [section 9 or 9A]

[Substituted by G.S.R. 70(E), dated 31st January, 1996 (w.e.f. 31-1-1996).]

or 10 but the same has been improperly withheld by the employer. He may, therefore, be directed to pay the amount to me.

Signature or thumb impression of the nominee/legal representative

Date.....

Signature of an Attestor in case the nominee/legal representative is unable to sign and affixes thumb sign impression.

Full address of the nominee/legal representative.

Date.....

Form J

[See Rule 11]

To

Sir,

Shri....., Inspector, having directed under sub-section (2) of section 17 to pay the maternity benefit or other amount being..... (nature of amount) to which..... (name of woman) is said to be entitled, I prefer this appeal under sub-section (3) of section 17. In view of the facts mentioned in the memorandum attached hereto and other documents filed herewith it is submitted that the woman is not entitled to the maternity benefit or the said amount and hence the decision of the Inspector in the copy of which is enclosed, may be set aside.

Signature of the aggrieved person

Full address

Date.....

Form K

[See Rule 15]

(Abstract of the Maternity Benefit Act, 1961, and the rules made thereunder).

1. No employer shall knowingly employ a woman during the six weeks immediately following the day of her delivery of miscarriage/[Medical termination of pregnancy]

[Inserted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996)]

and no woman shall work in any establishment during the said period.

2. No pregnant woman shall, on a request being made by her in this behalf, be required by her employer to do during the period of one month immediately preceding the period of six weeks before the date of her expected delivery and also for any period during this period of six weeks for which she does not avail of leave of absence, any work which is of an arduous nature or which involves 10 of standing, or which in way is likely to interfere with her pregnancy or the normal

development of the foetus, or is likely to cause her miscarriage or otherwise to adversely affect her health.

3. [(1) Subject to the provisions of the Act, every woman who has actually worked in an establishment of the employer from whom she claims maternity benefit for a period of not less than eighty days, including the days during which she was laid off, shall be entitled to, and her employer shall be liable for, the payment of maternity benefit at the rate of her average daily wages, or the minimum rate of wage fixed or revised under the Minimum Wages Act, 1948, or ten rupees a day, whichever is highest, for the period of her actual absence not exceeding six weeks immediately preceding the day of delivery and the remaining period immediately following that day :

Provided that the qualifying period of eighty days aforesaid shall not apply to a woman who has immigrated into the State of Assam and was pregnant at the time of the immigration:

Provided further that where a woman dies during the period for which maternity benefit is payable, to her, the benefit shall be payable only for the days upto and including the day of her death. However, where the woman having been delivered of a child, dies during her delivery or during the remaining period of maternity benefit leaving behind in either case the child, the employer shall be liable for the, payment of maternity benefit for the entire period of maternity benefit following the day of her delivery but if the child also dies during the said period, then, for the days upto and including the day of the death of the child.]

[Substituted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996)]

(2)

The amount of maternity benefit for the period preceding the date of her expected delivery shall be paid in advance by the employer to the woman on production of a certificate in Form ' B ' stating that she is pregnant and is expected to be delivered of a child within six weeks of the date of production of the certificate, and the amount due for the subsequent period shall be paid by the employer to the woman within forty-eight hours of production of the certificate in Form 'B' or Form 'D' stating that she has been delivered of a child or production of a certified extract from a Birth Register maintained f, under the provisions of any law for the time being in force.

4.

(1)

Any woman employed in an establishment and entitled to maternity benefit under the provisions of this Act may give notice in writing in Form 'E' to her employer, stating that her maternity benefit and any other amount to which she may be entitled under this Act may be paid to her or to such person as she may nominate in the notice and that she will not work in any establishment during the period for which she receives maternity benefit.

(2)

In the case of a woman who is pregnant, such notice shall state the date from which she will be absent from work, not being a date earlier than six weeks from the date of her expected delivery.

(3)

Any woman who has not given the notice when she was pregnant may give such notice as soon as possible after the delivery.

(4)

On receipt of the notice, the employer shall permit such woman to absent herself from establishment until the expiry [of the remaining period of maternity benefit]

[Substituted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996)]

after the day of her delivery.

5.

(1)

Every woman entitled to maternity benefit under the Act shall also be entitled to receive from her employer a medical bonus of [two hundred and fifty rupees]

[Substituted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

, if no pre-natal, confinement and post-natal care is provided for by the employer free of charge. The medical bonus shall be paid along with the second installment of the maternity benefit.

(2)

In case of miscarriage, a woman shall, on production of a certificate in Form 'B' or Form 'D' be entitled to leave with wages at the rate of maternity benefit, for a period of six weeks immediately following the day of her miscarriage. The wages shall be paid within 48 hours of production of the certificate in Form 'B' or Form 'D'.

(2a)

[In case of medical termination of pregnancy, a woman shall, on production of a certificate in Form 'B' be entitled to leave with wages of the rate of maternity benefit for a period of six weeks immediately following the day of her medical termination of pregnancy. The wages shall be paid within 48 hours of production of the certificate in Form 'B'.]

[Inserted by G.S.R. 70(E), dated 31-1-1996 (1-2-1996).]

(3)

A woman suffering from illness arising out of pregnancy, delivery, premature birth of child or miscarriage/[medical termination of pregnancy or tubectomy operation]

[Substituted by G.S.R. 70(E), dated 31-1-1996 (w.e.f. 1-2-1996).]

shall, on production of a certificate in Form 'B', be entitled, in addition to the period of absence allowed to her on account of maternity or miscarriage/[medical termination of pregnancy or tubectomy operation], as the case may be, to leave with wages at the rate of maternity benefit for a maximum period of one month. The wages for the leave period shall be paid within 48 hours of the expiry of that period.

6. Every woman delivered of a child who returns to duty after such delivery shall, in addition to the interval for rest allowed to her, be allowed in the course of her daily work two breaks of 15 minutes' duration for nursing the child until the child attains the age of fifteen months. An extra sufficient period, depending upon the distance to be covered, shall be allowed for the purpose of the journey to and from the creche or the place where the children are left by women while on duty, provided that such extra period shall not be less than 5 minutes and more than 15 minutes' duration.

7.

(1)

When a woman absents herself from work in accordance with the provisions of the Act, it shall be unlawful for her employer to discharge or dismiss her during or on account of such absence or to give notice of discharge or dismissal on such a day that the notice will expire during such absence, or to vary to her disadvantage any of the conditions of her service.

(2)

(a)

The discharge or dismissal of a woman at any time during her pregnancy, if the woman but for which discharge or dismissal would have been entitled to maternity benefit or medical bonus shall not have the effect of depriving her of the maternity benefit or medical bonus :

Provided that where the dismissal is for one or more of the following acts, the employer may, by order in writing communicate to the woman, deprive her of the maternity benefit or medical bonus or both-

(i)

wilful destruction of employer's goods or property;

(ii)

assaulting any superior or co-employee at the place of work;

(iii)

criminal offence involving moral turpitude resulting in conviction in a court of law;

(iv)

theft, fraud, or dishonesty in connection with the employer's business or property; and

(v)

wilful non-observance of safety measures or rules on the subject or wilful interference with safety devices or with fire-fighting equipment.

(b)

Any woman deprived of maternity benefit or medical bonus or both, may within sixty days from the date on which the order of such deprivation is communicated to her, appeal in Form 'G' to [the Competent Authority and his decision]

[Substituted by G.S.R. 64, dated 4-2-1992 (w.e.f. 15-2-1992)]

on such appeal whether the woman should or should not be deprived of maternity benefit or medical bonus or both, shall be final.

8. If a woman works in any establishment after she has been permitted by her employer to absent herself under the provisions of the Act, she shall forfeit her claim to the maternity benefit for such period.

9.

(1)

Any woman claiming the maternity benefit or any other amount to which she is entitled under the Act and any person claiming that payment due has been improperly withheld may make complaint to the Inspector in writing in Form 'H' or 'I' as the case may be.

(2)

The Inspector may, of his own motion or on receipt of a complaint in Form 'H' or 'I' make an inquiry or cause an enquiry to be made and if satisfied that payment has been wrongfully withheld, may direct the payment to be made in accordance with his orders.

(3)

Any person aggrieved by the decision of the Inspector may, within, thirty days from the date on which such decision is communicated to such person, appeal to [the Chief Inspector of Mines]

[Substituted by G.S.R. 64, dated 4-2-1992 (w.e.f. 15-2-1992)]

.

(4)

The decision of [* * *]

[Certain words omitted by G.S.R. 49, dated 4-1-1988 (w.e.f. 16-1-1988).]

[the Competent Authority]

[Substituted by G.S.R. 64, dated 4-2-1992 (w.e.f. 15-2-1992)]

where an appeal has been preferred to him or of the Inspector where no such appeal has been preferred, shall be final.

10. (a) The employer shall supply to every woman employed by him at her request free of cost copies of Forms 'B', 'C', 'D', 'E', 'F', 'G', 'H' and 'I'.

(b)

The failure to submit a notice, appeal or complaint in the prescribed form will not affect the right of a woman entitled to receive maternity benefit or any other amount due under the Act. Where a notice, appeal or complaint has been received in a form other than the prescribed form, the authority concerned shall within fifteen days of the receipt of such notice, appeal or complaint, require the woman to submit the notice, appeal or complaint, as the case may be in the prescribed form.

11. (a) (1) The employer of [every mine or circus]

[Substituted by G.S.R. 59(E), dated 27-2-1975 (w.e.f. 1-3-1975).]

in which women are employed shall prepare and maintain a muster roll in Form 'A' and shall enter therein particulars of all women workers in [the mine or circus.]

[Substituted by G.S.R. 59(E), dated 27-2-1975 (w.e.f. 1-3-1975).]

(2)

All entries in the muster-roll shall be made in ink and maintained up-to-date and it shall always be available for inspection by the Inspector during working hours.

(b)

The employer of [every mine or circus]

[Substituted by G.S.R. 64, dated 4th February, 1992 (w.e.f. 15-2-1992).]

shall on or before the 21st day of January in each year submit [* * *]

[Certain words omitted by G.S.R. 49, dated 4th January, .1988 (w.e.f. 16-1-1988).]

[the Competent Authority]

[Substituted by G.S.R. 59 (E), dated 27th February, 1975 (w.e.f. 1-3-1975).]

a return in each of the Forms 'L', 'M', 'N' and 'O', giving information as to the particulars specified in respect of the preceding year.

[Form X]

[Substituted Forms 'L', 'M', 'N' and 'O' by Notification No. G.S.R. 453(E), dated 29.5.2015 (w.e.f. 1.3.1975).]

S. No.

Name

Registration

If yes (Registration No.)

(1)

(2)

(3)

(4)

01.

The Building and other Construction Workers (Regulation of Employment & Conditions of Service) Act, 1996.

02.

The Contract Labour (Regulation & Abolition) Act, 1970.

03.

The Inter-State Migrant Workmen (Regulation of Employment and Condition of Service) Act, 1979.

04.

The Employees Provident Funds and Miscellaneous Provisions Act, 1952.

05.

The Employees' State Insurance Act, 1948.

06.

The Mines Act, 1952. Notice of opening under Regulation 3 of Coal Mines Regulation, 1957 or Regulation 3 of Metalliferous Mines Regulation, 1961.

07.

The Factories Act, 1948.

08.

The Motor Transport Workers Act, 1961.

09.

The Shops and Establishments Act (State Act).

10.

Any other Law for the time being in force.

C. Details of Principal Employer, Contractor and Contract Labour:

01.

Name of the principal employer in the case of a contractor's establishment.

02.

Date of commencement of the establishment.

03.

Number of Contractors engaged in the establishment during the year.

04.

Total Number of days during the year on which Contract Labour was employed.

05.

Total number of man-days worked by Contract Labour during the year.

06.

Name of the Manager or Agent (in case of mines).

07.

Address House No./Flat No. Street/Plot No. Town

District State Pin Code

E-mail ID Telephone Number M. No.

D. Working hours and weekly rest day:

01.

Number of days worked during the year.

02.

Number of mandays worked during the year.

03.

Daily hours of work.

04.

Weekly day of rest.

E. Maximum number of persons employed in any day during the year:

Sl. No.

Males

Females

Adolescents (between the age of 14 to 18 years.)

Children (below 14 years of age.)

Total

F. Wage rates (Category Wise):

Category

Rates of Wages

No. of workers

Regular

Contract

Male

Female

Children

Adolescent

Male

Female

Children

Adolescent

Highly

Skilled

Skilled

Semiskilled

Unskilled

G. (a) Details of Payments:

Gross wages paid

Deductions

Net wages paid

In cash

In kind

Fines

Deductions for damage or loss

Others

In cash

In kind

(b)

Number of workers who were granted leave with wages during the year:

Sl. No.

During the year

Number of workers

Granted leave with wages

H. Details of various welfare amenities provided under the statutory schemes:

Sl. No.

Nature of various welfare amenities provided

Statutory (specify the statute)

I. The Maternity Benefit Act, 1961, Maternity Benefit (Mines and Circus) Rules, 1963:

(a)

Details of establishment, medical and para-medical staff:

01.

Date of opening of establishment

02.

Date of closing, if closed

03.

Name of Medical Officer

03(i)

Qualification of Medical Officer

03(ii)

Is Medical Officer at (the mines or circus) ?

03(iii)

If a part time, how often does he/she pay visit to establishment ?

03(iv)

Is there any Hospital?

03(v)

If so, how many beds are provided?

03(vi)

Is there a lady Doctor?

03(vii)

If so, what is her qualification?

03(viii)

Is there a qualified mid-wife?

03(ix)

Has any crèche been provided?

(b)

Leave Granted under the Maternity Benefit Act, 1961 Maternity Benefit (Mines and Circus) Rules 1963/Employees' State Insurance Act, 1948:

01.

Total number of female employees in the establishment

02.

Total number days of leave granted

03.

Number of employees granted maternity leave/benefited by ESI

Declaration

It is to certify that the above information is true and correct and also I certify that I have complied with the all provisions of Labour Laws applicable to my establishment.

Place Date Sign. Here

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